IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-506

CP (CAA) No. 40/230/232/ND/2022

IN THE MATTER OF:

Puresoftware Pvt. Ltd. And Puresoft Technologies Pvt. Ltd. **....Applicant**

SECTION

U/s 230-232 **Order delivered on 22.02.2023**

CORAM:
SHRI P.S.N PRASAD,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant :
For the Respondent :
For the RD : Ms. Shankari Mishra

ORDER

Heard the submissions made by Ld. Counsel for the Petitioners, Proxy Counsel for RD as well as Proxy Counsel for Income Tax Dept. Proxy Counsel for Income Tax Dept has submitted that for the Assessment Year 2020-21, demand of an amount of Rs. 83,07,040/- is outstanding for payment by the de-merged Company. Counsel for the Petitioners has submitted that their clients have preferred an appeal before the Commissioner of Appeals and the same is pending for adjudication. Therefore, Counsel is directed to instruct their clients to furnish an affidavit-cum-undertaking regarding the status of the appeal as well as their commitment-cum-undertaking to pay the tax dues as per law, within next 2 days. Proxy Counsel for RD has submitted that the observations raised by them have been met with by the Petitioners. Therefore, they have no objection in accepting the proposal of the Petitioners from the RD's as well as RoC's point of view. Let this matter be posted on **01.03.2023.**

Sd/- **Sd/-**

(DR. BINOD KUMAR SINHA) **(SHRI P.S.N PRASAD)**
MEMBER (T) **MEMBER (J)**

Khushboo
22.02.2023